



ශ්‍රී ලංකා ප්‍රජාතාන්ත්‍රික සමාජවාදී ජනරජයේ ගැසට් පත්‍රය

අති විශේෂ

The Gazette of the Democratic Socialist Republic of Sri Lanka

EXTRAORDINARY

අංක 2108/9 – 2019 ජනවාරි මස 28 වැනි සඳුදා – 2019.01.28

No. 2108/9 – MONDAY, JANUARY 28, 2019

(Published by Authority)

PART I: SECTION (I) – GENERAL

Government Notifications

My No.: CI/1866.

THE INDUSTRIAL DISPUTES ACT, CHAPTER 131

THE Collective Agreement entered into between Maxies & Company (Pvt.) Ltd., Chilaw Road, Wennappuwa, 61170 of the one part and the Inter Company Employees Union, No. 259/9, Sethsiri Mawatha, Koswatte, Talangama of the other part on 07th June, 2018 is hereby published in terms of Section 06 of the Industrial Disputes Act, Chapter 131, of the Legislative Enactments of Ceylon (Revised Edition 1956).

A. WIMALAWEERA,
Commissioner General of Labour.

Department of Labour,
Labour Secretariat,
Colombo 05.
19th day of January, 2019.

Collective Agreement No. 41 of 2018

COLLECTIVE AGREEMENT

THIS COLLECTIVE AGREEMENT is entered into on this 07th day of June, Two Thousand and Eighteen (2018) between Maxies & Company (Pvt.) Limited, a company duly registered and having its registered office at Chilaw Road,



Wennappuwa, 61170 and hereinafter referred to as "the Employer" and the Inter Company Employees Union, a Trade Union duly registered and having its registered office at 259/9, Sethsiri Mawatha, Koswatte, Thalangama, and hereinafter referred to as "the Union".

WHEREAS the Union has made certain demands from the Employer for the revision of the wages of their members employed by the Employer and the parties have thereafter reached the following terms of agreement:

1. **Parties covered and bound.**— This Agreement shall cover and bind the Employer, the Union and workers of the Employer who are members of such Union employed on a permanent contract of service in the Non-Executive category as at 23rd March 2018. This Agreement shall not apply to workers who are engaged in services by the Employer on a fixed term contract, and to workers who are on probationary employment as at 23rd March 2018.

2. **Effective date of operation.**— This Agreement shall take effect from 24th March, 2018 and shall not stand terminated prior to 24th March, 2020.

This Agreement shall supersede and replace the provisions of all the Collective Agreements signed between parties prior to this Agreement coming into operation.

3. **Wage Revision.**— The Basic Salary of all workers, who were in employment as at 24th March 2018, and continue to be in employment as at the date of signing of this Agreement shall be revised as follows:

(a) A sum of Rs. 2,250/- for the period 24th March 2018 to 23rd March 2019;

(b) A sum of Rs. 500/- for the period 24th March 2018 to 23rd March 2019 with effect from 24th March 2018 as per the provisions of the previous Collective Agreement (2016/2018);

(c) A sum of Rs. 1,750/- for the period 24th March, 2019 to 23rd March, 2020.

Notional Arrears of the salary revision, for the months of April 2018 and May 2018 (02 months) will be granted in the form of a lump sum and shall not attract any consequential benefits such as EPF, ETF, overtime etc..

The prevailing salary scales will be abolished with effect from the date of signing of this Collective Agreement.

4. **Obligatory Salary Revision by the Government during the Agreement period.**— Any obligatory salary revision legislated by the Government or any other institution shall be included as a part of this salary revision.

5. **Trade Union Action.**— The Employer, Union and the employees covered and bound by this Agreement undertake that they shall not during the continuance in force of this Agreement attempt to seek to vary in any manner any of the terms and conditions agreed upon herein and the union and its members shall not resort to any form of Trade Union Action in relation to any dispute connected with or arising out of any matter covered by this Agreement.

6. **English Text.**— In the event of any inconsistencies arising, between Sinhala and English text of this Collective Agreement, the English text shall prevail.



WITNESSESS:



02-405